

Department of Public Works and Highways

Contract ID: 24CC0265

Contract Name: Construction of Reinforced Concrete Flood Control Structure along Tabang River,
Barangay Tibig

Location of the Contract: Bulakan, Bulacan

CONTRACT AGREEMENT

KNOW ALL MEN BY THESE PRESENTS:

This **CONTRACT AGREEMENT**, made this APR 01 2024, by and between:

The **GOVERNMENT OF THE REPUBLIC OF THE PHILIPPINES** through the **Department of Public Works and Highways (DPWH) Bulacan First District Engineering Office** represented herein by **HENRY C. ALCANTARA**, duly authorized for this purpose, with main office address at Tikay, City of Malolos, Bulacan, hereinafter referred to as the "**PROCURING ENTITY**";

-and-

AMETHYST HORIZON BUILDERS AND GEN. CONTRACTOR AND DEVELOPMENT CORP., a corporation organized and existing under and by virtue of laws of the Republic of the Philippines, with main office address at **792 SCG Executive Bldg., 4th Floor, Room 403, F. Manalo, Bambang, Pasig City**, represented herein by **ROCHELLE R. CAMPOS**, duly authorized for this purpose, hereinafter referred to as the "**CONTRACTOR**";

WITNESSETH:

WHEREAS, the **PROCURING ENTITY** is desirous that the **CONTRACTOR** execute the Works under Contract ID 24CC0265- Construction of Reinforced Concrete Flood Control Structure along Tabang River, Barangay Tibig, Bulakan, Bulacan, hereinafter called the "**Works**," and the **PROCURING ENTITY** has accepted the Calculated Bid of the **CONTRACTOR** for the execution and completion of the **Works** at the calculated unit bid prices shown in the attached Bill of Quantities, or a total Contract price of *Sixty Nine Million Four Hundred Seventy Nine Thousand Four Hundred Twenty Eight Pesos and 64/100 (P 69,479,428.64).*

NOW, THEREFORE, for and consideration of the foregoing premises, the parties hereto agree as follows:

1. In this **CONTRACT AGREEMENT**, words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract hereinafter referred to.
2. The following documents shall be attached, deemed to form, and be read and construed as part of this **CONTRACT AGREEMENT**, and shall be interpreted in the following order of priority:
 - a. This Contract Agreement
 - b. Documents forming part of the Contract Agreement:
 - (1) Notice of Award (NOA) with the Contractor's signed "conforme"
 - (2) **CONTRACTOR's** Bid in the Form of Bid, including its Technical and Financial Components, as calculated by the Procuring Entity and conformed to by the **CONTRACTOR** through the NOA.

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- (3) Instructions to Bidders (ITB) and Bid Data Sheet (BDS)
- (4) Supplemental/Bid Bulletins for Bidding Documents
- (5) Special Conditions of Contract (SCC)
- (6) General Conditions of Contract (GCC)
- (7) Specifications
- (8) Drawings
- ((9) Performance Security
- (10) Other Documents:
 - (a) Construction Methods
 - (b) Construction Schedule in the form of PERT/CPM Diagram or Precedence Diagram and Bar Chart with S-Curve, or other approved tools of project scheduling, and Cash Flow.
 - (c) Manpower Schedule
 - (d) Equipment Utilization Schedule
 - (e) Construction Safety and Health Program initially approved by the Head of the Procuring Entity
 - (f) **CONTRACTOR's** All Risk Insurance (CARI)

3. In consideration of the payments to be made by the **PROCURING ENTITY** to the **CONTRACTOR** as hereinafter mentioned, the **CONTRACTOR** hereby covenants with the **PROCURING ENTITY** to execute and complete the **Works** and remedy any defects therein in conformity with the provisions of this **CONTRACT AGREEMENT** in all respects.

4. In consideration of the execution and completion of the **Works** by the **CONTRACTOR**, the **PROCURING ENTITY** hereby covenants to pay the **CONTRACTOR** the unit prices in the **CONTRACTOR's** Calculated Bid, as applied to the actual quantities accomplished as certified by the **PROCURING ENTITY** under the provisions of this **CONTRACT AGREEMENT**, at the times and in the manner prescribed by this **CONTRACT AGREEMENT**.

Construction of 194.80 l.m. concrete slope protection structure using 15m and 9m steel sheet piles (front and back) and surplus unclassified excavation of 1,031.47 cu.m.

Item Number	Description	Quantity	Unit	Unit Cost (P)	Total Amount (P)
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Part A	Facilities for the Engineer				
A.1.1(8)	Provision of Field Office for the Engineer (Rental Basis)	8.00	mo.	32,659.20	261,273.60
A.1.1(11)	Provision of Furnitures/Fixtures, Equipment & Appliances for the Field Office for the Engineer	1.00	l.s.	382,078.90	382,078.90
Part B	Other General Requirements				
B.5(1)	Project Billboard/Signboard	3.00	each	6,872.50	20,617.50
B.7(1)	Occupational Safety and Health Program	1.00	l.s.	448,700.36	448,700.36
B.9(1)	Mobilization/Demobilization	1.00	l.s.	509,645.37	509,645.37
Part C	Earthworks				
801(6)	Removal of Structures and Obstruction, Concrete	168.00	cu.m.	2,783.42	467,614.56
1700(1)	Clearing and Grubbing	487.00	sq.m.	20.25	9,861.75
1704(1)b	Embankment (from Borrow)	1,076.59	cu.m.	921.66	992,249.94
Part F	Bridge Construction				
902(1)a1	Reinforcing Steel, Grade 40	10,664.62	kg.	66.89	713,356.43
900(1)b	Structural Concrete, 20.68 Mpa, A, 14 days	156.08	cu.m.	9,840.86	1,535,961.43
Part G	Drainage and Slope Protection Structures				
1047(5)d	Metal Structure Accessories (Steel Plate)	34,406.55	kg.	130.33	4,484,205.66
1701(4)	Channel Excavation (Surplus Unclassified)	1,031.47	cu.m.	431.07	444,635.77
1712(1)	Concrete (Slope Protection)	207.30	cu.m.	10,485.02	2,173,544.65
1716(6)	Structural Steel Sheet Piles, Furnished	11,832.00	l.m.	3,787.71	44,816,184.72
1716(12)	Structural Steel Sheet Piles, Driven	11,832.00	l.m.	1,032.75	12,219,498.00
T O T A L					69,479,428.64

The whole WORKS in this PROJECT as covered by this CONTRACT shall be completed within 240 (two hundred forty) calendar-days in accordance with the provisions of the Bid documents.

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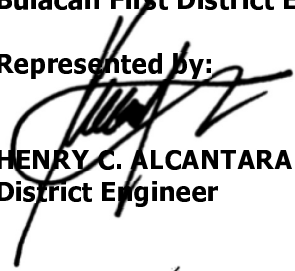
Location of the Contract: Bulakan, Bulacan

IN WITNESS WHEREOF, the parties hereto set their respective hands on the day, month and year first
above written.

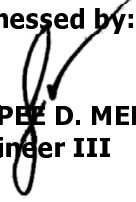
PROCURING ENTITY:

**Department of Public Works and Highways
Bulacan First District Engineering Office**

Represented by:


HENRY C. ALCANTARA
District Engineer

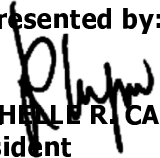
Witnessed by:

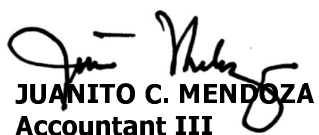

JAYPEE D. MENDOZA
Engineer III

CONTRACTOR:

**AMETHYST HORIZON BUILDERS AND
GEN. CONTRACTOR AND DEVELOPMENT
CORP.**

Represented by:


ROCHELLE R. CAMPOS
President


JUANITO C. MENDOZA
Accountant III